

1. Subsection (e) of section twenty-five of the Inebriates Act 1898, is hereby repealed, and in lieu thereof the following provisions shall have effect:—

For the purpose of defraying expenditure under the Inebriates Act, 1898, county councils and town councils shall

(1) have power to impose and levy an assessment in the same manner and subject to the same conditions as the public health general assessment authorised by the Public Health (Scotland) Act, 1897; and

(2) have power to borrow money on the security of the said assessment for the capital purposes of the Inebriates Act, 1898, in the same manner and subject to the same conditions as for the purposes enumerated in section one hundred and forty-one of the Public Health (Scotland) Act, 1897.

2. Every person who in any road, street, or public place, or in any building to which the public have access, commits the offence of behaving while drunk in a riotous or disorderly manner, may be prosecuted summarily on a charge under this Act, and shall be liable on conviction to a penalty not exceeding forty shillings, and failing payment to imprisonment for a period not exceeding seven days, or in the discretion of the magistrate to imprisonment for a period not exceeding seven days.

An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

3. This Act shall apply to Scotland only, and may be cited as the Inebriates Amendment (Scotland) Act, 1900, and the Inebriates Acts, 1879 to 1899, and this Act may be cited together as the Inebriates Acts, 1879 to 1900.

CHAPTER 29.

An Act to assimilate the County Council and Borough Council Franchise in London. [30th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the London County Council Electors Qualification Act, 1900.

2. A parochial elector shall be entitled to vote at the election of a county councillor for the administrative county of London in the same manner as a county elector, and subject to the same provisions.

Definitions.

3. In this Act, unless the context otherwise requires, the expression "county elector" means a person entitled to vote at the election of a county councillor, under the Local Government Act, 1888, and the expression "parochial elector" means a parochial elector within the meaning of the Local Government Act, 1894.

CHAPTER 30.

An Act to amend the Laws relating to Beer Retailers' and Spirit Grocers' Licences in Ireland.

[30th July 1900.]

WHEREAS it is expedient to amend the law as to the granting of certificates for all licences for the sale of beer and spirits by retail for consumption off the premises :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Discretion to
licensing
justices to
grant or
refuse cer-
tificates.

1. Notwithstanding anything in any Act the licensing justices shall be at liberty, in their free and unqualified discretion, either to refuse a certificate for any new excise or other licence for sale of beer or spirits by retail, to be consumed off the premises, on any grounds appearing to them sufficient, or to grant the same to such persons as they, in the execution of their statutory powers, and in the exercise of their discretion deem fit and proper, and for the purposes aforesaid shall be at liberty to hear and receive and act upon any objection and any evidence either in support thereof or in aid of the application made or tendered by any resident or owner of property in the parish wherein are situate the house and premises in respect of which such certificate is applied for.

Grant of
certificates.

2. Certificates for any such licences as aforesaid shall, notwithstanding anything in any Act, be granted at annual licensing sessions, and not at any other time.

Exemption
from applica-
tion of
40 & 41 Vict.
c. 4. s. 2.

3. The provision requiring the production of a certificate as to the exclusive occupation of rated premises for a period of three months contained in section two of the Beer Licences Regulation (Ireland) Act, 1877, shall not apply to the case of a transfer of a licence being granted on the death or removal of the person in occupation of the rated premises immediately prior to the granting of such transfer.

Short title,
construction,
and com-
mencement.

4.—(1.) This Act may be cited as the Beer Retailers' and Spirit Grocers' Retail Licences (Ireland) Act, 1900, and may be cited with the Licensing (Ireland) Acts, 1833 to 1886, and shall be construed as one with those Acts.

(2.) This Act shall come into operation on the first day of September one thousand nine hundred.